

REAL ESTATE BOARD

AGENDA

Thursday, May 14, 2009 - 9:00 a.m.

2nd Floor

**Department of Professional and Occupational Regulation
9960 Mayland Drive
Richmond, Virginia 23233
(804) 367-8526**

I. CALL TO ORDER

II. PUBLIC COMMENT PERIOD **

III. ADMINISTRATIVE MATTERS

- 1 Approval of Agenda
2. Approval of Minutes:
 - A. March 12, 2009, Informal Fact-Finding Conference
 - B. March 19, 2009, (Licensing) Informal Fact-Finding Conference
 - C. March 19, 2009, (Disciplinary) Informal Fact-Finding Conference
 - D. March 19, 2009, (Licensing) Informal Fact-Finding Conference
 - E. March 25, 2009, Informal Fact-Finding Conference
 - F. March 26, 2009, Real Estate Board Meeting
 - G. March 26, 2009, Informal Fact-Finding Conference
 - H. April 1, 2009, Informal Fact-Finding Conference
 - I. April 9, 2009, Informal Fact-Finding Conference
 - J. April 16, 2009, Informal Fact-Finding Conference
 - K. April 16, 2009, (Recovery Fund) Informal Fact-Finding Conference
 - L. April 23, 2009, Informal Fact-Finding Conference

IV. FAIR HOUSING REPORTS

3. Fair Housing Administrator's Report
4. Fair Housing Sub-Committee Minutes – March 26, 2009

V. CASES

5. File Number 2009-02908 – Kathleen Farrar
IFF by Brigil – Licensing
6. File Number 2009-02518 – Steven Falkowitz
IFF by Brigil – Licensing

7. File Number 2009-03179 – Sheila Haun
IFF by Brigil – Licensing
Appointment – Sheila Haun, Applicant
8. File Number 2009-02992 – Ramon Smith
IFF by Brigil – Licensing
9. File Number 2009-02991 – David McClung
IFF by Brigil – Licensing
Appointment – David McClung, Applicant
10. File Number 2009-01231 – David Reutershan
IFF by Oglesby – Licensing
11. File Number 2008-02925 – Teresa M. Menendez v. Melinda E. Poirier
IFF by Oglesby – Recovery Fund
12. File Number 2008-03449 – Marie Ann Schulte
IFF by Oglesby – Disciplinary
13. File Number 2009-01855 – Frank M. Worrell
Pre-IFF Consent Order by Oglesby – Disciplinary
14. File Number 2009-00093 – Linda Mather
Post-IFF Consent Order by Oglesby – Disciplinary
15. File Number 2009-00652 – Vicki Holmes
IFF by Oglesby – Disciplinary
16. File Number 2008-01319 – Meredith L. Minter
IFF by Oglesby – Disciplinary
17. File Number 2008-03716 – Mondana Nicksolat
Post-IFF Consent Order by Oglesby & Daniels – Disciplinary
18. File Number 2009-01775 – James C. Black, Jr.
Pre-IFF Consent Order by Johnson & Oglesby – Disciplinary
19. File Number 2008-00035 – Dionetta Boone
IFF by Johnson – Disciplinary
20. File Number 2008-04305 – Dionetta Boone
IFF by Johnson – Disciplinary
21. File Number 2009-00150 – Kelley W. Randolph
Pre-IFF Consent Order by Johnson – Disciplinary

22. File Number 2009-02201 – Charles G. Smith
Pre-IFF Consent Order by Johnson – Disciplinary
23. File Number 2009-02541 – Joseph C. Foster
Pre-IFF Consent Order by Johnson - Disciplinary
24. File Number 2009-01191 – Tani R. Haggerty
IFF by Gaeser – Disciplinary
25. File Number 2008-03236 – Nancy G. Heflin
IFF by Gaeser – Disciplinary
26. File Number 2009-01278 – Sandra R. Wilkinson
Pre-IFF Consent Order by Taylor – Disciplinary
27. File Number 2009-00797 – Gloria L. Brown
Pre-IFF Consent Order by Taylor – Disciplinary
28. File Number 2009-01454 – Darlene M. Harris
Pre-IFF Consent Order by Clarke – Disciplinary
29. File Number 2009-01042 – Lorenzo Gamez
Pre-IFF Consent Order – Disciplinary
30. File Number 2008-04889 – Patricia Ford Copper
Pre-IFF Consent Order – Disciplinary
31. File Number 2009-00604 – Anne S. Overington
Pre-IFF Consent Order – Disciplinary
32. File Number 2009-02077 – Keith L. Hartke
Pre-IFF Consent Order – Disciplinary

VI. ADMINISTRATIVE ISSUES

- NOIRA – Fair Housing Regulations
- Residential Property Disclosure Statement

VII. EDUCATION

- May 13, 2009, Education Committee Report

VIII. OLD BUSINESS

IX. NEW BUSINESS

X. ADJOURNMENT

NEXT MEETING SCHEDULED FOR THURSDAY, JULY 9, 2009

**** 5-minute public comment, per person, on those items not included on the agenda with the exception of any open disciplinary files. No other public comment will be accepted by the Board during the meeting.**

Persons desiring to participate in the meeting and requiring special accommodations or interpretive services should contact the Department at (804) 367-8552 at least ten days prior to the meeting so that suitable arrangements can be made for an appropriate accommodation. The Department fully complies with the Americans with Disabilities Act.

August 5, 2013



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 13544
(FIFTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATIONS:
 - a. This special permit authorizes the transportation in commerce of DOT Specification 4BA240 cylinders containing liquefied petroleum gas (LPG) and/or residue of LPG without hazard warning labels when transported by a motor vehicle that is placarded. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce. The safety analyses did not consider the hazards and risks associated with consumer use, use as a component of a transport vehicle or other device, or other uses not associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.301(a) in that the proper shipping name and identification number need not be marked on each package, § 172.301(c) in that marking of the special permit number on each package is not required and § 172.401 in that each cylinder must be labeled, except as provided herein.

5. BASIS: This special permit is based on the application of Carlson Logistics dated March 7, 2013 and additional information dated July 23, 2013, submitted in accordance with § 107.105 and the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Liquefied petroleum gas	2.1	UN1075	N/A
Propane	2.1	UN1978	N/A

7. SAFETY CONTROL MEASURES:
- a. PACKAGING - Prescribed packagings are DOT Specification 4BA240 steel cylinders.
- b. OPERATIONAL CONTROLS:
- (1) The cylinders must be transported on a motor vehicle that is placarded with "FLAMMABLE GAS" placards.
- (2) Shipping papers must reflect a correct current accounting of all cylinders both full and expended.
- (3) Cylinders must be secured in the vehicle in accordance with § 177.834(a).
8. SPECIAL PROVISIONS: A current copy of this special permit must be maintained at each facility where the package is offered for transportation.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: None as a requirement of this special permit.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: bmoore

DECISION



THE COMPTROLLER GENERAL
OF THE UNITED STATES
WASHINGTON, D.C. 20548

FILE: B-208523

DATE: April 13, 1983

MATTER OF: Massachusetts National Guard Technicians

DIGEST:

Massachusetts National Guard technicians who had elected State rather than Federal retirement coverage, as provided in the National Guard Technicians Act of 1968, improperly converted to Federal Civil Service retirement after they separated from the Massachusetts National Guard and were later rehired. No reimbursement is allowable for interest expense to restore state retirement coverage, even though the costs accrued because of mistaken and unauthorized conversion to the Federal Civil Service retirement system. The Government is not liable for the unauthorized acts of its agents. Further, without a statutory or contractual provision for interest and attorney fees claimed, reimbursement of these items must be denied.

Several Massachusetts National Guard technicians claim reimbursement for costs of interest and attorney fees they indicate they incurred because they were mistakenly placed under the Federal Civil Service retirement system without authority. The National Guard Bureau, Departments of the Army and the Air Force, in submitting the technicians' claims to us, recommends payment because of the mistake, but states it could find no authority to allow the claims.

We find that the claims may not be paid because there is no contractual or statutory provision permitting reimbursement of the interest or attorney fees requested. Without such authority losses arising from mistaken and unauthorized actions of agency officers and employees may not be paid by the Government.

Background

The claimants were employed as civilian technicians with the Massachusetts National Guard when the National Guard Technicians Act of 1968, became effective in January

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1969. See Public Law 90-486, 82 Stat. 755, August 13, 1968 (32 U.S.C. § 709 and § 709 notes). Under that Act, National Guard technicians were changed from state employees to Federal employees. Since many technicians were participating in state retirement programs, section 6 of the Act authorized them to elect before January 1, 1969, to remain covered by their state retirement system rather than switch to the Federal Civil Service retirement system. For those who elected to remain with their state system, section 6 of the Act also provided authority for the Federal Government to make the required employer's contributions to the state system.

The claimants in this case elected to remain covered by the Massachusetts State retirement system rather than the Federal system. At the time of election, they were informed that their choice to retain Massachusetts State retirement coverage was an irrevocable option for as long as they were continually employed by the Massachusetts National Guard. However, they were also told by National Guard officials that they would be converted to the Federal Civil Service retirement system if after separating from employment they were rehired by the Massachusetts National Guard after the effective date of the Technicians Act. Later they did separate, and after a break in service the Massachusetts National Guard rehired them as technicians. They then withdrew their contributions that had accumulated in the Massachusetts State retirement system and were converted to Federal Civil Service retirement coverage. For periods up to 10 years, Federal retirement deductions were made from the claimants' pay and, along with the Federal employer's contributions, were transferred to the Civil Service Retirement and Disability Fund.

However, in 1977 a question arose as to the propriety of these actions, and the Personnel Officer of the Massachusetts National Guard sought clarification from the United States Civil Service Commission (now Office of Personnel Management). By letter of December 16, 1977, an official of the Civil Service Commission informed the Personnel Officer of the Massachusetts State National Guard that under Public Law 90-486 an election in 1969 to remain in a state retirement system was final, and a National Guard technician could not convert to Federal Civil Service retirement upon being rehired as a technician in the same

state after a break in service. This information revealed that the claimants conversion to Federal Civil Service retirement had been a mistake. Consequently the claimants were transferred from the Federal Civil Service retirement system to the Massachusetts State retirement system along with the employees' and employer's contributions to the Federal system.

In addition to the transfer of contributions which took place, the claimants believe that they should be reimbursed for other costs arising from their reentry into the Massachusetts State retirement system after the intervening period when they were mistakenly under Federal retirement system.

The reimbursement requested includes two elements of interest charged the claimants in order to fully restore their Massachusetts State retirement coverage. At the commencement of the interim period under Federal Civil Service retirement, the claimants withdrew the balance of their contributions then accumulated in the Massachusetts State retirement system. All of the claimants request reimbursement of interest that would have accrued on this balance during the interim period had it not been withdrawn, and which they indicate the Massachusetts system requires them to pay. The second element is sought by six of the claimants who believe they are entitled to reimbursement of interest on additional contributions that they would have paid into the Massachusetts State retirement system had they not left that system during the interim period.

In addition, two of the claimants through their attorney request the difference between their payroll deductions (7 percent of their pay) for Federal Civil Service retirement during the interim period and what they say their contributions to the Massachusetts State retirement system (5 percent of their pay) would have been if they had continued that coverage uninterrupted. These two claimants also ask that their attorney fees for presenting the claims be paid.

Applicable Law and Conclusions

Concerning the technicians' eligibility to be covered by the Federal Civil Service retirement system, that was a

matter for determination by the Civil Service Commission (now Office of Personnel Management) which has the authority to administer that system. 5 U.S.C. § 8347; 55 Comp. Gen. 684, 687-688 (1976); and Matter of Ortiz, B-193337, January 4, 1979. As to the irrevocability of elections to remain under state retirement coverage pursuant to the National Guard Technicians Act, the Civil Service Commission published the following information dated April 30, 1969:

"(1) * * * A technician's election to remain in a State retirement plan is irrevocable and cannot be changed later so that service credit can be allowed under the Civil Service Retirement System."

Federal Personnel Manual Supplement 831-1, Subchapter S3, paragraph S3-3, Installment 20, April 30, 1969. This provision was reissued December 10, 1971. Thus, as the Commission officially advised the National Guard Personnel Officer in the 1977 letter it was the Commission's position that a technician's choice to remain under a state retirement system was irrevocable and that conversion to Federal Civil Service retirement was unauthorized, even after a break in service and reemployment with the state.

It appears that the corrective action taken to return the claimants to the state retirement system with concurrent transfer of funds to that system was all the action the law allows to correct the error. Although we have not been furnished a full accounting of the transfer of funds from the Federal Civil Service Retirement Fund to the Massachusetts system, we may assume that the difference between the 7 percent Federal contribution and the 5 percent Massachusetts contribution was used either to pay interest on the late deposit to the Massachusetts fund or was refunded to the employees. There is no authority we are aware of under which we could authorize payment of the claims for interest and attorney fees. However, the question of whether interest may be paid on the amounts erroneously paid into the Federal Civil Service retirement system for the period they were deposited in the Civil Service Retirement Fund is a matter for determination by the Office of Personnel Management. That office may be willing to consider further the question of appropriate interest payments with respect to the amounts erroneously paid into and held in the fund.

It is a well-settled rule of law that interest may be assessed against the Government only if provided for by contract or specifically authorized by statute. 53 Comp. Gen. 824 (1974) and Matter of Albrado, 58 Comp. Gen. 5 (1978). Similarly for payment of attorney fees, a contract or statutory authorization is required. Matter of Jackson, B-193272, August 21, 1981. Such authorization is absent in the present case.

Also, while the claimants may have incurred some expense due to the erroneous actions or advice of the National Guard officials, that alone provides no basis for us to authorize payment. In the absence of a statute providing otherwise, the United States is not responsible for the unauthorized advice or acts of its agents. Federal Crop Insurance Corp. v. Merrill, 332 U.S. 380, 384 (1947); 58 Comp. Gen. 35 (1978); 56 Comp. Gen. 85 (1976); 53 Comp. Gen. 11 (1973).

Accordingly, payment of these claims is not authorized.

Milton J. Jocular
for Comptroller General
of the United States

AMENDMENT TO H.R. 310
OFFERED BY MS. SCHAKOWSKY OF ILLINOIS

Increase not applicable to individuals

Page 3, line 5, after “each violation” insert the following: “, except that this sentence shall not apply if the violator is an individual”.



AMENDMENT TO H.R. 310
OFFERED BY MS. SCHAKOWSKY OF ILLINOIS

Citations before penalties preserved for individuals

Page 6, line 13, after “the utterance” insert the following: “, except that this clause shall not apply if the violator is an individual”.



307.180 Repealed, reenacted, and amended as KRS 367.960, 1984.